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DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 122

AN ACT TO AMEND TITLES 16 AND 29 OF THE DELAWARE CODE RELATING TO HEALTH CARE
WORKFORCE PLANNING.

1 WHEREAS, Delaware's health care sector is experiencing significant workforce shortages across a variety of
2 occupations, including physicians, nurses, dentists, and behavioral health professionals; and

3 WHEREAS, Delaware's demographic changes, including an aging population and increasing rates of chronic
4 disease, are intensifying the demand for health care services and skilled health care professionals in this State; and

5 WHEREAS, effective workforce planning, policy development, and resource allocation require accurate,
6 comprehensive, and timely data on health care workforce supply, distribution, payer source, and other important
7 information; and

8 WHEREAS, the current availability and consistency of health care workforce data in Delaware across sectors is
9 inadequate to support evidence-based policymaking and investment; and

10 WHEREAS, enhanced data collection and analysis will support workforce development initiatives, educational
11 and training program alignment, and targeted strategies to address workforce gaps and disparities; and

12 WHEREAS, data collection at the time of provider licensure or renewal will help meet the need for improved data
13 in the state without overly burdening providers; and

14 WHEREAS, the Delaware Health Care Commission's Health Workforce Subcommittee recommends increasing
15 the health care workforce data collected at the time of licensure renewal.

16 NOW, THEREFORE:

17 BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

18 Section 1. Amend § 123, Title 16 of the Delaware Code by making deletions as shown by strike through and
19 insertions as shown by underline as follows:

20 § 123. Reports from public institutions, Division of Professional Regulation and resorts; penalties.

21 (c)(1) The ~~Delaware~~ Division of Public Health and the Delaware Health Care Commission ~~shall be~~ are authorized
22 to request and receive licensing ~~data~~ data, ~~(including, but not limited to,~~ including names, addresses, ~~and license type)~~
23 types, and demographic and employment-related data to the extent that the data is are collected and electronically stored by

the Division of Professional Regulation for the ~~purpose~~ purposes of issuing and maintaining professional licenses and supporting health care workforce research and planning under § 8735(y) of Title 29. Data collected for health care workforce research and planning purposes may not include personal data such as home address or personal financial information. ~~by the Division of Professional Regulation. The Delaware Division of Public Health and the Delaware Health Care Commission may share licensing data with their contractors to carry out the purposes of this subsection.~~ Licensing data ~~shall~~ may only be used for the purpose of conducting official state business, which may include any of the following:

a. ~~measuring~~ Measuring and tracking the supply of licensed health care professionals in ~~the State.~~ this State.

b. Identifying and tracking data related to United States Department of Health and Human Services initiatives, including identifying Health Professional Shortage Areas (HPSAs), Maternity Care Target Areas (MCTAs), and Medically Underserved Areas and Populations (MUA/Ps), as these terms are defined by the federal Health Resources and Services Administration.

c. Health care workforce research and planning.

d. Understanding issues related to supply, demand, distribution, and use of health care workers.

e. Informing health care workforce policy. ~~The Delaware Division of Public Health and the Delaware Health Care Commission may share licensing data with their contractors to carry out the purpose of this subsection.~~

(2) The boards affected ~~shall include but not be limited to:~~ include all of the following:

(1) a. Delaware State Board of Medical Licensure and Discipline; Discipline.

(2) b. Delaware State Board of Dentistry and Dental Hygiene; Hygiene.

(3) c. Delaware State Board of Nursing; Nursing.

(4) d. Delaware State Board of Professional Counselors; Board of Mental Health and Chemical Dependency Professionals.

(5) e. Delaware State Board of Examiners of Psychologists; Psychologists.

(6) f. Delaware State Board of Clinical Social Work Examiners; Examiners.

(7) g. Delaware State Board of Podiatry; Podiatry.

(8) h. Delaware State Board of Chiropractic; Chiropractic.

(9) i. Delaware State Board of Occupational Therapy Practice; Practice.

(10) j. Delaware State Board of Examiners in Optometry; Optometry.

(11) k. Delaware State Board of Pharmacy; Pharmacy.

(12) l. Delaware State Examining Board of Physical Therapists and Athletic Trainers; Trainers.

(13) m. Delaware State Board of Examiners of Speech/Language Pathologists, Audiologists Audiologists, and Hearing Aid Dispensers; Dispensers.

(14) n. Delaware State Board of Examiners of Nursing Home Administrators; and Administrators.

(15) o. Delaware State Committee of Dietetics/Nutrition. Board of Dietetics/Nutrition.

p. Delaware State Board of Funeral Services.

q. Delaware State Board of Massage and Bodywork.

r. Delaware State Board of Veterinary Medicine.

(f) Any individual data provided pursuant to this section shall be confidential. No public employee, commission member, or contractor acting on behalf of a state agency or employee of such a contractor may:

(1) Use any data provided pursuant to this section for any purpose other than the statistical, forecasting, workforce research and planning, and program purposes for which the data is are furnished.

(h) The Division of Public Health's Office of Healthcare Provider Resources shall collaborate with the Delaware Health Care Commission and the Division of Professional Regulation to identify the data the Division of Professional Regulation must collect during the licensing or renewal process for the purposes described in subsection (c) of this section.

Section 2. Amend § 8735, Title 29 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 8735. Division of Professional Regulation.

(y) The Division shall support health care workforce research and planning by collaborating with relevant licensing boards, commissions, and agencies to identify data pertinent to health care workforce research and planning, and by collecting the identified data from applicants during the licensing or renewal process.

SYNOPSIS

This Act supports critical health care workforce research and planning efforts by giving the Division of Public Health and the Delaware Health Care Commission the ability to obtain comprehensive workforce-related data from the Division of Professional Regulation. It requires the Division of Public Health's Office of Healthcare Provider Resources to collaborate with the Delaware Health Care Commission and the Division of Professional Regulation to determine what data should be collected from health care providers during the licensing and renewal process to assist the Division of Public Health with workforce research and planning. This Act also directs the Division of Professional Regulation to collect health care workforce-related data during the licensing or renewal processes. The data collected will be for purpose of health care workforce research and planning and will not include personal information such as personal financial information.

The health care provider licensing process provides a rich opportunity for this State to obtain information it needs to ensure that its health care workforce is equipped to meet the needs of Delaware residents. Collecting data with the goal of informing health care workforce research and planning is a common practice nationwide, with at least 28 states collecting health care workforce data as part of the licensing process. Such data will fill crucial gaps in the Division of Public Health's ability to understand health care workforce needs and develop policies and programs aimed at meeting them.

As is currently the case, health care workforce data collected by the Division of Professional Regulation may only be used for official state business. This Act provides that official state business includes the following purposes specific to health care workforce research and planning:

1. Identifying and tracking data related to Health Professional Shortage Areas (HPSAs), Maternity Care Target Areas (MCTAs), and Medically Underserved Areas and Populations (MUA/Ps), and other initiatives identified by the United States Department of Health and Human Services.
2. Health care workforce research and planning.
3. Understanding issues related to supply, demand, distribution, and use of health care workers.
4. Informing health care workforce policy.

This Act also makes technical corrections to conform existing law with the standards of the Delaware Legislative Drafting Manual.

Author: Senator Huxtable